

Friday, January 10, 2020

TO REQUEST A HEARING ON ANY MATTER ON THIS CALENDAR, YOU MUST CALL THE COURT AT (209) 257-2692 BY 4:00 P.M. ON THE DAY PRECEDING THE HEARING. NOTICE OF THE INTENTION TO APPEAR MUST ALSO BE GIVEN TO ALL OTHER PARTIES.

IF THE CLERK IS NOT NOTIFIED OF A PARTY'S INTENTION TO APPEAR, THERE WILL BE NO HEARING AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT. NO FURTHER NOTICE OF THE COURT'S RULING WILL BE PROVIDED.

18-CVC-10752

TORRES, VANESSA

VS.

FCA US LLC A DELAWARE LIMITED
LIABILITY COMPANY**CIVIL MISCELLANEOUS MOTION****TENTATIVE RULING:**

Plaintiff's Motion to Require Defendant's Compliance with CCP §583.130 and Other Relief is GRANTED.

CCP § 583.130 provides, in relevant part, "all parties shall cooperate in bringing the action to trial or other disposition" and California Civil Code § 1658 states "If no time is specified for the performance of an act required to be performed, a reasonable time is allowed. If the act is in its nature capable of being done instantly- as, for example if it consists in the payment of money only - it must be performed immediately upon the thing to be done being exactly ascertained." (emphasis added)

The court finds that more than a reasonable amount time has passed and that the Defendant has failed to offer justification for its delay in completing the terms of the accepted 998 Offer.

The court considers Defendant's Declaration in Opposition filed December 31, 2019 as a delay, devoid of any legal authority which would have been considered by the court, had it been presented.

Defendant is ordered to (1) take return of the Plaintiff's subject vehicle and pay restitution as agreed in the accepted 998 Offer within seven (7) days from the date of the hearing and (2) pay Plaintiff's attorney's fees, costs, and expenses as agreed in the accepted 998 Offer, which shall be determined by the Court by way of a single noticed motion or further agreement of the parties.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

19-CVC-11132

ORTEGA, GRACIE

VS.

CITY OF SUTTER CREEK

DEMURRER - DEFENDANT'S

TENTATIVE RULING:

Defendant's demurrer to the Plaintiff's First Amended Complaint is **OVERRULED**. (CCP § 430.10(e)). Defendants are ordered to file and serve an Answer within five (5) days of the date of this ruling. (CCP §1167.3.)

Defendant's motion to strike is **GRANTED** in part. "CITY OF SUTTER CREEK, AND" shall be stricken from the Second Cause of Action – Premises Liability, Prem. L-5.

A demurrer challenges the sufficiency of a complaint based on defects that appear on its face or from matters that are subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; CCP §430.10.) To survive a demurrer, a complaint must plead specific facts to establish every element of a cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879.) A court should treat a demurrer as admitting all material facts that are properly pled, but need not accept conclusions, contentions or deductions of law or fact. (Blank, 39 Cal.3d at 318.) A court may consider judicially noticeable facts in ruling on a demurrer. (CCP §430.30(a); Stormedia Inc., v. Superior Court (1999) 20 Cal.4th 449, 457 n.9.)

Plaintiff is required to plead factual allegations addressing the elements of each cause of action. Although pleadings are to be liberally construed, they must nonetheless set forth essential facts with reasonable precision. (Semole v. Sansoucie (1972) 28 Cal.App.3d 714.) Further, a court in examining the sufficiency of a complaint should "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law or fact." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

First Cause of Action - Negligence

A negligence cause of action includes four required elements: (1) duty; (2) breach; (3) causation; and (4) damages. (Conroy v. Regents of University of Cal. (2009) 45 Cal.4th 1244, 1250; Hayes v. County of San Diego (2013) 57 Cal.4th 622, 629.) In addition, "[e]xcept as otherwise provided by statute, a public employee is not liable for an injury caused by the act or omission of another person." (Gov. Code § 820.8.) Rather, he is only liable "for injury proximately caused by his own negligent or wrongful act or omission." (Ibid; see also Weaver v. State (1998) 63 Cal.App.4th 188, 197, 202-203.)

Defendants demur to Plaintiff's first cause of action for negligence on the grounds that Govt. Code §815(a) makes it clear that "except as otherwise provided by statute, a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person".

Plaintiff identifies Gov. Code §835 as the statute on which the public entity (City of Sutter Creek) is liable for Plaintiff's injury. Gov. Code §835 provides, in relevant part:

...a public entity is liable for injury cause by a dangerous condition of its property if Plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition at the time of the injury, that dangerous condition created a reasonable foreseeable risk of the kind of injury which was incurred; and either: (a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Plaintiff pleads sufficient facts to proceed with a cause of action of negligence under Govt. Code §835(a).

Second Cause of Action - Premises Liability/Dangerous Condition of Public Property

Defendants demur to Plaintiff's cause of action for premises liability on the grounds that (1) there exists no cause of action of "premises liability" against a public entity such as the City of Sutter Creek and (2) Plaintiff fails to plead sufficient facts establishing a cause of action for dangerous condition of public property.

A public entity may be liable for injury caused by a dangerous condition of property "if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, and that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred." (Gov. Code § 835.) Plaintiff must show in addition that either "(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or ¶ (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Id., subsections (a) and (b).)

Gov. Code §830 defines a dangerous condition as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used." "Liability under Government Code section 835 for maintaining public property in a dangerous condition depends, however, upon the existence of some defect in the property itself and the existence of a causal connection between that defect and the plaintiff's injury." (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1138.)

Here, Plaintiff identifies the property as "walking on Spanish Street near the property located at 140 Spanish Street, City of Sutter Creek". The physical condition of the property is described as "uneven" and "cracked" which "created a dangerous condition on a public street/sidewalk on Spanish Street where the incident occurred." (FAC at Attachment 1) The FAC then cites Defendant for "failing to provide a safe alternative route for Pedestrians using Spanish street at the time of the incident". (FAC at Attachment One.) The Plaintiff "came into contact with a dangerous and hazardous condition which caused Plaintiff to trip and fall, thereby sustaining injuries and damages." (FAC at Attachment PL-1.)

Plaintiff pleads sufficient facts to establish the cause of action for dangerous condition of public property.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.
